

Plaintiff cites *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243 for the proposition that discovery into a party's document retention policies is appropriate to assess whether a reasonable search was conducted. (Motion, p. 7.) However, Plaintiff's reliance on *San Benito* is misplaced. That case arose in a Public Records Act enforcement proceeding where the reasonableness of the agency's document search was the central merits question. In that narrow context, the court upheld discovery into the County's retention policies because they could "inform [the plaintiff's] assessment of the reasonableness of the County's search." (*Id.* at 258.) Here, Plaintiff's Song-Beverly claims turn on whether the Subject Vehicle had warranted defects that substantially impaired its use, value, or safety, and whether Defendant failed to conform the vehicle to warranty after a reasonable number of repair attempts. The adequacy of Defendant's document search is not an element of any of those claims. Thus, *San Benito* is inapposite.

Sanctions:

Code of Civil Procedure sections 2030.300(d) and 2031.310(h) provide that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or a demand for production unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Here, the imposition of sanctions would be unjust due to the mixed results and because Plaintiff filed the motions to compel before signing the protective order that covered several of the documents at issue.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #16-18, 47, 50-59 DENIED.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #20-30 GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference confirmed for November 2, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502805	DAVIS VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES FROM DEFENDANT FORD MOTOR COMPANY, AND REQUEST FOR SANCTIONS BY GLENN DAVIS

Tentative Ruling: Upon a timely motion to compel further responses to interrogatories, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and

straightforward as the information reasonably available to the responding party permits.” (C.C.P. § 2030.220(a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (C.C.P. § 2030.220(b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information....” (C.C.P. § 2030.220(c).)

Special Interrogatory Nos. 10 and 26:

Nos. 10 and 26 sought all facts supporting Defendant’s contention that the Vehicle did not qualify for repurchase, and to describe all training Defendant provided from 2023 to the present regarding how to evaluate a prelitigation repurchase request under Song-Beverly. In response, Defendant referred Plaintiff to certain documents that it had or would produce. However, “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits.” (C.C.P. § 2030.220(a).) It is improper to refer to other documents. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.)

Special Interrogatory Nos. 44 and 45:

These special interrogatories sought the repair rates for “every component” that was repaired under warranty for all 2023 Ford Broncos, as well as the repair rate for all 2023 Ford Broncos. However, Plaintiff fails to show that the requested rates involved repairs or components that were the same as the ones at issue with the Vehicle in dispute. Accordingly, the interrogatories are overbroad and not relevant.

Special Interrogatory No. 47 and 49-58:

Nos. 47 and 49-58 sought meta-discovery, i.e., a description of Defendant’s preservation efforts and retention policies. As further discussed above in the analysis for Request for Production Nos. 47 and 50-59, Plaintiff has not satisfied the threshold *Jensen* requires to justify meta-discovery.

Motion to Compel Further Responses to Special Interrogatories, Set One, as to #10 and 26 GRANTED.

Motion to Compel Further Responses to Special Interrogatories, Set One, as to #44, 45, 47 and 49-58 #20-30 DENIED.

Plaintiff to provide verified, code-compliant responses, without objection, within 30 days of the date of this Order.

Plaintiff’s Request for Sanctions DENIED.

Trial Setting Conference confirmed for November 2, 2026.